CRIMINAL LAW

Friday, Sept. 25
(Lecture 8)

Welcome! This slide will help you prepare for today's class.

- **Today are starting Part III of our course: The Elements or Ingredients of a Criminal Offence**
- **First up: "Omissions." Please be prepared to discuss *Browne.***
- **We will also briefly discuss "Voluntariness." Please be prepared to discuss *North Bay (City) v. Viens***

CRIMINAL LAW

Friday, September 25
(Lecture 8)

DF Sessions

- **DF Session #1: Monday, October 5, 12:30-2:00 (IKB 2002)**
- **<u>Topics:</u>**
  - **Strategies for weekly reading & note-taking**
  - **Developing a "timeline" for studying/exam-prep**
- *Materials will be posted to eClass after the session*

- ***DF Session #2: Wednesday, Nov. 18, 2:30 PM - 3:30 PM***

Course Outline: Descriptive Overview

PART I: BACKGROUND AND CONTEXT FOR THE STUDY OF CRIMINAL LAW

1. Introduction to the Course
2. Sentencing
3. The Criminal Justice Process
4. Presumption of Innocence, Burdens of Proof, and Standards of Proof

PART II: HOW THE CRIMINAL LAW IS MADE

5. Sources of Criminal Law
6. Constitutional Limits on Criminal Law

PART III: THE ELEMENTS OR 'INGREDIENTS' OF A CRIMINAL OFFENCE

The Elements of the Offence

The "ingredients" for a crime:

Actus Reus

+

Mens Rea



Actus Reus

- **"The prohibited act [or omission]".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **conduct**; and, in some cases, the **consequences** and/or **circumstances**.



Actus Reus

265 (1) A person commits an assault when

(a) without the consent of another person, he applies force intentionally to that other person, directly or indirectly …

267 Every person is guilty of an indictable offence and liable to imprisonment for a term of not more than 10 years or is guilty of an offence punishable on summary conviction who, in committing an assault …

(b) causes bodily harm to the complainant …

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Thespian is upset at Director after learning he was not cast in the play. In a burst of anger, he picks up a heavy drinking glass from the props table and throws it at Director, striking her and cutting her arm.

What if Thespian threw a wet rag that struck Director but did not injure her?

Actus Reus

265 (1) A person commits an assault when

(a) without the consent of another person, he **applies force** intentionally **to that other person, directly or indirectly** …

Thespian is rehearsing with Costar. As part of the scene, Thespian pushes Costar. As discussed, Costar turned his shoulder towards Thespian and leaned back to facilitate the fake shove.

Is Thespian guilty of assaulting Costar?

R. v. Clark

173. (1) Every one who willfully does an indecent act

(a) in a public place in the presence of one or more persons […]

“Dweezil Scenario”

348 (1) Every one who

(a) breaks and enters a place *with intent to commit an indictable offence therein* […]

is guilty

(d) if the offence is committed in relation to a dwelling-house, of an indictable offence and liable to imprisonment for life, and

Actus Reus

- **"The prohibited act [or omission]".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **conduct**;
  the **circumstances**;
  and (in some cases)
  the **consequences**.



Mens Rea

- **The "guilty mind" or "fault" requirement.**

- The mental component of the crime.



Mens Rea

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian knows Director has a fatal nut allergy. He offers her the cookie with the intent to kill her.

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian has no idea Director has a fatal nut allergy. He offers the cookie in hopes of ingratiating himself to her before she casts the next production.

Objectives for Week 4

27. Explain what is meant by the terms "elements of the offence," "*actus reus*" and "*mens rea*."

28. **Understand and apply the rules that govern when a person can be held criminally liable for an omission.**

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Omissions

Harleen Hunter goes deer hunting. She sees something moving in a bush across the road. She immediately fires into the bush and strikes another hunter who is crouching there.

Has Harleen committed an act or an omission?

Omissions

- **Failure, fails**
- **Omits**
- **Duty**
- **Etc.**

Omissions

1. Legal duty to act; and

2. Law criminalizing failure to perform that duty.

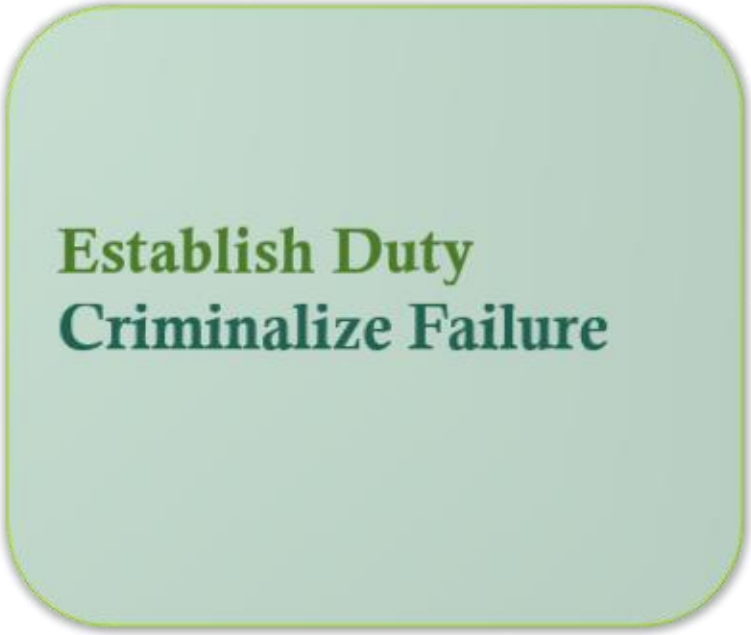
Omissions

Criminal responsibility for omissions can arise where:

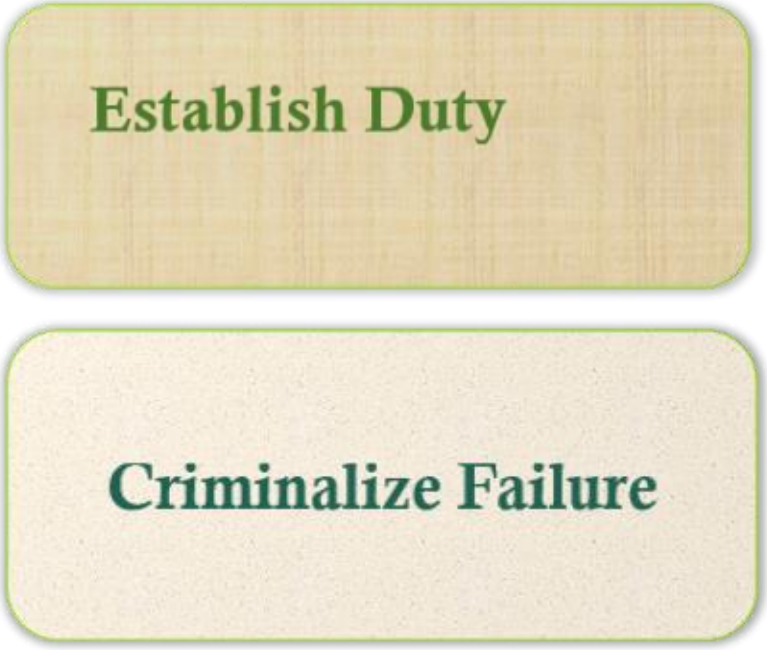
1. A statutory provision identifies a specific legal duty AND criminalizes the failure to perform that specific duty; or

2. A statutory provision criminalizes the failure to perform a legal duty in general; and a specific legal duty arises from statute or common law.

Omissions



A statutory provision identifies a specific legal duty and criminalizes the failure to perform that specific duty.



A statutory provision criminalizes the failure to perform a legal duty in general; and a specific legal duty arises from statute or common law.

A statutory provision identifies a specific legal duty and criminalizes the failure to perform that specific duty

Establish Duty
Criminalize Failure

Statutory provision identifies a legal duty and criminalizes the failure to perform that specific duty

Failure to stop after accident

320.16 (1) Everyone commits an offence who operates a conveyance and who at the time of operating the conveyance knows that, or is reckless as to whether, the conveyance has been involved in an accident with a person or another conveyance and who fails, without reasonable excuse, to stop the conveyance, give their name and address and, if any person has been injured or appears to require assistance, offer assistance.

A statutory provision criminalizes the failure to perform a legal duty in general; and a specific legal duty arises from statute or common law.

Establish Duty

Criminalize Failure

Statutory provision criminalizes the failure to perform a legal duty

180. […]

(2) For purposes of this section, every one commits a common nuisance who does an unlawful act or fails to discharge a legal duty and thereby

> **(a) endangers the lives, safety, health, property or comfort of the public; or**
>
> **(b) obstructs the public in the exercise or enjoyment of any right that is common to all the subjects of Her Majesty of Canada.**

Statutory provision criminalizes the failure to perform a legal duty

219. **(1) Everyone is criminally negligent who […]**

(b) in omitting to do anything that it is his duty to do, shows wanton or reckless disregard for the lives or safety of other persons.

(2) For purposes of this section, "duty" means a duty imposed by law.

[S. 220 – Criminal negligence causing death]
[S. 221 – Criminal negligence causing bodily harm]

Common Law Duties (examples)

- Common law duty to "**refrain from conduct which could cause injury to another person**." (*R. v. Thornton*)
- Common law duty of a parent "to **take reasonable steps to protect his or her child from illegal violence** used by the other parent or by a third person towards the child which the parent foresees or ought to foresee." (*R. v. Popen*)
- Common law duty to **take reasonable precautions when carrying a dangerous weapon** (*R. v. Coyne*)

Reflection Questions

- **Do common law duties raise 'rule of law' concerns when used to ground criminal liability?**
- **Can you draw any connections between your critical analysis of common law duties as a basis for criminal liability, and the debate between the majority and dissent in *Canadian Foundation* (about judicial interpretation and vagueness)?**

Statutory Duties (examples)

- **S. 216: undertaking to administer medical care…**
- **S. 217: undertaking to do an act where omission may be dangerous to life….**
- **S. 217.1: undertaking to direct work….**

Statutory provision criminalizes the failure to perform a legal duty

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(b) in omitting to do anything that it is his duty to do, shows wanton or reckless disregard for the lives or safety of other persons.

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[S. 220 – Criminal negligence causing death]
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Statutory Duties (examples)

- S. 216: undertaking to administer medical care…
- S. 217: undertaking to do an act where omission may be dangerous to life….
- S. 217.1: undertaking to direct work….

217. Every one who undertakes to do an act is under a legal duty to do it if an omission to do the act is or may be dangerous to life.

R. v. Browne

“I’m going to take you to the hospital.”

R. v. Browne

"[W]hen we are deciding whether conduct is caught by the web of criminal liability, the threshold definition [of "undertaking"] we apply must justify penal sanctions. […]

The mere expression of words indicating a willingness to do an act cannot trigger the legal duty.

There must be something in the nature of a commitment, generally, though not necessarily, upon which reliance can reasonably be said to have been placed […]"

R. v. Browne

"Before someone is convicted of recklessly breaching a legal duty generated by his or her undertaking, that undertaking must have been clearly made, and with binding intent. Nothing short of such a binding commitment can give rise to the legal duty contemplated by s. 217."

Penny Parent and her three-year-old son, Samson, are playing in their front yard with their dog. Their neighbour, Dawson Defendant, is sitting on his porch reading the newspaper. Suddenly, the dog runs off. Penny chases after it, yelling, "Watch Samson for me!" over her shoulder at Dawson. Dawson hears her but continues to reading. Samson runs into the street and is struck by a car and injured.

Has Dawson made an undertaking for purposes of s. 217?

What if D responded, "I'm on it!" BEFORE P ran off

What if D responded, "I'm on it!" AFTER P ran off?

Objectives for Week 4 (continued)

28. Understand and apply the rules that govern when a person can be held criminally liable for an omission.

- **Always look at the *statute* to identify the required elements/ingredients.**
- **There will always be a *conduct* ingredient. It can be an *act* or an *omission*.**
- **For an *omission*-based offence to exist, there must be a legal duty AND a statutory provision criminalizing the failure to perform that duty. They may be in a single provision, or we may need to combine.**
  - **The *legal duty* can come from statute or common law.**
  - **If the duty is triggered by an *undertaking*, apply the *Browne* standard.**

Objectives for Week 4 (continued)

29. **Explain the voluntariness component of *actus reus***

30. **Understand how physical involuntariness claims are adjudicated (including the evidentiary burden, burden of proof, and standard of proof that are applied)**

Actus Reus

- **"The prohibited act".**

- The wrongful act or omission that comprises the physical components of the crime.
- Includes the **[*voluntary*] conduct**; and, in some cases, the consequences and/or circumstances.



"One of these things is not like the others…"

- **Kirk's doctor taps his knee to check his reflexes. Kirk's leg reflexively shoots up, kicking his doctor.**
- **Kirk thrashes in his sleep, kicking his boyfriend who is sleeping next to him.**
- **Kirk has a seizure, during which he kicks a bystander.**
- **Kirk is playing soccer. He winds up to take a penalty shot. Just as he swings his leg forward, another player rushes in front of him unexpectedly, and Kirk kicks her.**

Voluntariness

- **The conduct is not "willed" (*Daviault*)**
- **"The mind does not go with what is being done" (*Rabey*)**
- **"[T]he state of a person who, though capable of action, is incapable of knowing that the act is taking place" (*Stone*)**

Voluntariness

"Punishing a person whose actions are involuntary in the physical sense is unjust because it conflicts with the assumption in criminal law that individuals are autonomous and freely choosing agents."

***R. v. Ruzic*, 2001 SCC 24**

North Bay (City) v. Viens

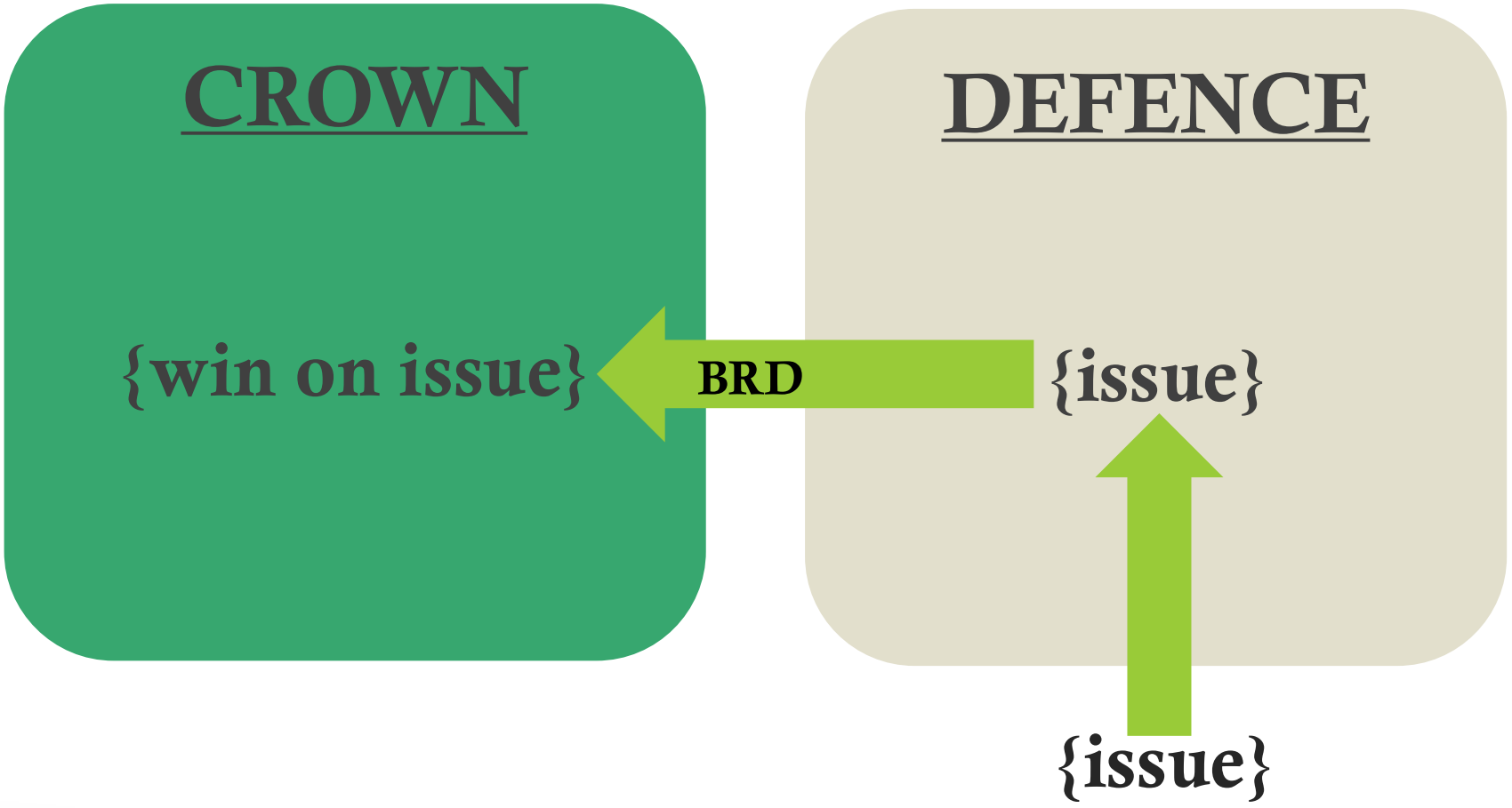


Objectives for Week 4 (continued)

29. **Explain the voluntariness component of *actus reus***

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Evidentiary Burden



Objectives for Week 4 (continued)

29. **Explain the voluntariness component of *actus reus***

30. **Understand how physical involuntariness claims are adjudicated (including the evidentiary burden, burden of proof, and standard of proof that are applied)**